
Case	Title / Nature of Case
2:00 PM LINE 1	
22-CIV-02099	GOLDEN GLOBAL ENTERPRISES INC., ET AL VS. TIM ONDERKO, ET AL
GOLDEN GLOBAL ENTERPRISES INC. TIM ONDERKO	JOHN J. HARTFORD DOMINIC V. SIGNOROTTI

MOTION TO INTERPRET AND ENFORCE STIPULATED APPELLATE SECURITY; TO STAY FURTHER PROCEEDINGS UNDER NOTICE OF DEFAULT; AND TO ENJOIN TRUSTEE'S SALE

TENTATIVE RULING:

On August 12, 2026, plaintiffs Golden Global Enterprises, Inc., Global Investment Trust – 2017; and 8880 Elder Creek Holdings, LLC (collectively Golden Global) filed a Motion to Interpret and Enforce Stipulated Appellate Security; to Stay Further Proceedings Under Notice of Default; and to Enjoin Trustee's Sale in Case No., 22-CIV-02099, but not in 22-CIV-02332. On August 19, 2026, Tim Onderko filed his Opposition to Motion for Preliminary Injunction in Case No. 22-CIV-02332, but not in 22-CIV-02099.

The parties are **ORDERED** file the motion and supporting papers in 22-CIV-02332 and the opposition and supporting papers in 22-CIV-02099. This tentative ruling addresses the motion and opposition as to both cases, each of which is currently on appeal.

The Motion is **GRANTED in part**.

On June 3, 2024, Golden Global appealed the amended judgment filed on April 15, 2024, in the amount of \$2,402,643.01, in Case Nos. 22-CIV-02099 and 22-CIV-02332; the appeals were consolidated on May 12, 2025. On October 24, 2025, the First District Court of Appeal affirmed the judgment confirming the arbitration award but remanded the case to the trial court for the limited purpose of allowing the trial court, in the first instance, to determine if correction of the arbitration award was warranted and proper under Code of Civil Procedure, sections 1286.6 and 1286.8. On November 13, 2025, the appellate court denied appellant's motion for rehearing. The Supreme Court denied appellant's petition for review on January 7, 2026. The Court of Appeal issued a remittitur on January 14, 2026.

On May 20, 2026, this court denied Gloden Global's request to modify the judgment confirming the arbitration award and instead to issue the judgment against Golden Global Enterprises, Inc. and Global Investment Trust – 2017, rather than Donald Wilson. On July 1, 2026, Golden Global appealed that order.

While the initial appeals were pending, the parties entered into a stipulation and order, filed on August 29, 2025, titled "Stipulation for Accepting Deed of Trust as an Undertaking on Appeal." The Stipulation provided in pertinent part that Wilson had appealed the amended judgment entered on April 15, 2024. Further the Stipulation stated that

A stay may be obtained by the Court approving a Property Bond through which two or more property owners demonstrate they own equity in real property that exceeds four times the amount of the judgment, acknowledging that they are jointly and severally, bound in the sum of \$4,805,286.02, to guarantee that, in the event that this judgment so appealed, or any part, is affirmed, or if the appeal from this judgment is withdrawn or dismissed, defendant will pay the amount directed to be paid by such judgment, or the part of such amount as to which the judgment is affirmed if affirmed only in part. If defendant does not make such payment within thirty (30) days that the Judgment has become final, then, on motion of plaintiff, judgment may be forthwith entered in favor of plaintiff and against the sureties for such amount, together with interest that may be due thereon and all costs that may be awarded against defendant on the appeal.

In the place and stead of the unsecured pledge of the sureties which is obtained through a Property Bond, the Plaintiff and Judgment Creditor has agreed to accept a first priority deed of trust on properties acknowledged to have equity exceeding the amount otherwise guaranteed by the sureties. The understanding and agreement is that the occurrence of a default that would otherwise permit an action to be filed against the sureties will be deemed a default and immediate foreclosure may be initiated, with all defenses to any foreclosure proceeding waived by Defendant Donald Wilson, Elizabeth Bondshu Wilson, Wilson & Wilson, a California general partnership, Donald Allan Wilson and Elizabeth Bondshu Wilson, as Co-Trustees of the 1993 Donald Allan Wilson and Elizabeth Bondshu Wilson Revocable Trust UDT dated 9/16/93.

(Onderko Decl., exh. 1 at pp. 2-3.)

That is, the parties agreed that “to guarantee that, in the event that this judgment so appealed, or any part, is affirmed, . . . , defendant will pay the amount directed to be paid by such judgment, . . .” They further agreed that the first priority deed of trust would substitute for a property bond. Wilson’s failure to pay the judgment within thirty days of the judgment becoming final would permit Onderko to file a motion to obtain a judgment against the sureties. However, due to Onderko’s acceptance of the deed of trust in lieu of the bond, the “occurrence of a default that would otherwise permit an action to be filed against the sureties will be deemed a default and immediate foreclosure may be initiated, with all defenses to any foreclosure proceeding waived . . .” (*Ibid.*)

With certain exceptions not present here, a decision by the Court of Appeal is “final in that court 30 days after filing.” (Cal. Rules of Court, rule 8.264(b)(1).) The appeal of the April 15, 2024 judgment became final on November 24, 2025. Even if the time ran from the remittitur issued after the Supreme Court denied review, it became final on February 24, 2026. That Golden Global and Wilson have now appealed this court’s May 20, 2026 order denying a request to modify the prior judgment does not affect the finality of the First District Court of Appeal’s decision affirming the April 2024

judgment. Accordingly, Wilson became obligated to pay the judgment on, at the latest, February 24, 2026.

However, the stipulation also provides that Onderko must first proceed against the Redwood City property and then, if the proceeds of the trustee's sale of that property are inadequate to satisfy the security, Onderko may proceed against the San Carlos property. Accordingly, the court will enjoin any trustee's sale against the San Carlos property until the sale of the Redwood City property is sold.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 2**

22-CIV-02332

TIM ONDERKO VS. DONALD WILSON, ET AL

TIM ONDERKO
DONALD WILSON

DOMINIC V. SIGNOROTTI
CHRISTINE E. JACOB

MOTION TO INTERPRET AND ENFORCE STIPULATED APPELLATE SECURITY; TO STAY FURTHER PROCEEDINGS
UNDER NOTICE OF DEFAULT; AND TO ENJOIN TRUSTEE'S SALE

TENTATIVE RULING:

See Line 1.